

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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SHAKIM ALLEN,

Plaintiff,

-against-

THE CITY OF NEW YORK; NYPD P.O. SAMUEL
HUI; NYPD SGT. STEPHEN HILLMAN; NYSDOCCS
P.O. HERNANDEZ; JOHN/JANE DOES # 1-10;
the individual defendant(s) sued
individually and in their official
capacities,

Defendants.

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YOU ARE HEREBY SUMMONED to appear and to answer the Complaint in this action and to serve a copy of your answer on plaintiffs' attorney within twenty (20) days of the service of this Summons, exclusive of the day of service (or within thirty (30) days after service is complete if this Summons is not personally delivered to you within the State of New York), and in case of your failure to appear or to answer, judgment will be taken against you by default for the relief demanded in the Complaint.

DATED: NEW YORK, NY
AUGUST 5, 2019MARTIN E. ADAMS, ESQ.
ADAMS & COMMISSIONG LLP
Attorney for Plaintiff
65 Broadway 1603
New York, NY 10006
212-430-6590

DEFENDANTS ADDRESS:

The City of New York
100 Church Street
New York, NY 10007NYS DOCCS P.O. HERNANDEZ
14 Dekalb Avenue
Brooklyn NY 11201NYPD P.O. SAMUEL HUI
NYPD SGT. STEPHEN HILLMAN
NYPD P.O. JOHN/JANE DOES #1-10
75th Precinct
1000 Sutter Ave,
Brooklyn, NY 11208**SUMMONS:****Index No:** _____**Date Filed:** _____**Basis of Venue:** Occurrence of
incident: Brooklyn, New York**Jury Trial Demanded**

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Plaintiff SHAKIM ALLEN, by and through her counsel

Adams & Commissiong LLP, upon information and belief, alleges as
follows:

PRELIMINARY STATEMENT

1. This is a civil rights, action in which plaintiff seeks relief for the violation of her rights secured by the laws of the State of New York; New York State Constitution; 42 U.S.C. §§ 1983 and 1988; and the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution. Plaintiff's claims arise from an incident that took place on December 28, 2012. During the incident, the City of New York, and members of the New York City Police Department ("NYPD") subjected plaintiff to, among other things, unlawful search and seizure, false

arrest, malicious prosecution failure to intervene, and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks compensatory and punitive damages from the individual defendants, compensatory damages from the municipal defendant, declaratory relief, an award of costs and attorney's fees, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983, and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction and Venue are proper here because the acts in question occurred in Kings County, New York.

PARTIES

4. Plaintiff SHAKIM ALLEN is a resident of the State of New York, Kings County.

5. The plaintiff is African American male.

6. At all times alleged herein, defendant City of New York was a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

7. At all times alleged herein, defendant NYPD P.O. SAMUEL HUI; and NYPD SGT. STEPHEN HILLMAN were New York City Police Officers employed with the 75th Precinct, located in

Kings County, New York or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

8. At all times alleged herein NYS DOCCS P.O. Hernandez, was a parole officers employed with the NYS Department of Corrections and Community Supervision (DOCCS) who violated plaintiff's rights as described herein.

9. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

10. On or about August 4, 2016, at approximately 1:15 AM at and in the vicinity of 2545 Linden Blvd, Apt 7G, Kings County, Brooklyn NY police officers operating from the 75th precinct, including upon information and belief, defendants NYPD P.O. SAMUEL HUI and NYPD Sgt. Stephen Hillman, and NYS DOCCS P.O. Hernandez and John/Jane Does # 1-10, at times acting in concert, and at times acting independently, committed the following illegal acts against plaintiff.

11. On or about August 4, 2016, at approximately 1:15 AM., at and in the vicinity of 2545 Linden Blvd, Apt 7G, Kings County, defendants entered plaintiff's girlfriend's home. Plaintiff was a lawful guest of the home at the time.

12. The defendant NYS DOCCS P.O. Hernandez said they were doing a safety check and was accompanied by NYPD police officers including defendant NYPD P.O. Samuel Hui.

13. The defendants unlawfully searched plaintiff's girlfriend's home without probable cause.

14. After the search, defendant NYPD P.O. Samuel Hui, grabbed plaintiff, and placed excessively tight handcuffs on plaintiff.

15. NYPD defendant P.O. Samuel Hui, then took plaintiff to the 75th precinct.

16. Once in the 75th precinct, plaintiff was searched and placed in a cell.

17. While plaintiff was in custody, defendants NYS DOCCS P.O. Hernandez and NYPD P.O. Samuel Hui, acting in concert and pursuant to a conspiracy, falsely and maliciously told, the Kings County District Attorney's office, that plaintiff had committed various crimes.

18. Based on these false allegations, the Kings County District Attorney's office decided to prosecute plaintiff in criminal court.

19. The Kings County District Attorney's office initiated a criminal proceeding against plaintiff under docket number 2016KN045762.

20. Defendants made these false allegations, despite the fact that they had no evidence that plaintiff had committed a crime.

21. Based on these false allegations, the NYS DOCCS issued plaintiff a parole violation.

22. Because there was no basis to arrest or prosecute plaintiff, the Kings County District Attorney's office dismissed all charges on October 11, 2016.

23. Because there plaintiff was no evidence that plaintiff violated parole, all parole violations against plaintiff were dismissed at a hearing.

24. The individual defendants acted in concert committing the above-described illegal acts toward plaintiff.

25. Plaintiff did not violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above incidents.

26. At no time prior to, during or after the above incidents were the individual defendants provided with information, or in receipt of a credible or an objectively reasonable complaint from a third person, that plaintiff had violated any law, regulation, or administrative code; committed any criminal act; or acted in a suspicious or unlawful manner prior to or during the above incidents.

27. The defendants acted under pretense and color of state law and within the scope of their employment. Said acts

by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of his/her rights.

28. As a direct and proximate result of defendants' actions, plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

29. Plaintiff is entitled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness and indifference to plaintiff's rights.

FIRST CLAIM

(FALSE ARREST UNDER FEDERAL LAW)

30. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

31. Defendants falsely arrested plaintiff without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime.

32. Accordingly, defendants are liable to plaintiff for false arrest under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

SECOND CLAIM**(UNLAWFUL SEARCH AND SEIZURE UNDER FEDERAL LAW)**

33. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

34. Defendants unlawfully searched plaintiff's residence without cause, a warrant, or consent.

35. Accordingly, defendants are liable to plaintiff for unlawful search and seizure under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

THIRD CLAIM**(UNREASONABLE FORCE)**

36. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

37. The individual defendants' use of force upon plaintiffs was objectively unreasonable.

38. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against plaintiff, since plaintiff was unarmed, compliant, and did not resist arrest.

39. Those defendants who did not touch plaintiff, witnessed these acts, but failed to intervene and protect plaintiff from this conduct.

40. Accordingly, the defendants are liable to plaintiff for using unreasonable and excessive force, pursuant

to 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

FOURTH CLAIM

(FAILURE TO INTERVENE)

41. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

42. Defendants had a reasonable opportunity to prevent the violations of plaintiff's constitutional rights, but they failed to intervene.

43. Accordingly, the defendants are liable to plaintiff for failing to intervene to prevent the violation of plaintiff's constitutional rights.

FIFTH CLAIM

(MALICIOUS PROSECUTION UNDER FEDERAL LAW)

44. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

45. The individual defendants are liable to plaintiff for malicious prosecution because prior to any grand jury action, with intent, knowledge, and malice, the defendants initiated a malicious prosecution against plaintiff by drafting and signing a sworn criminal court complaint and police reports that provided false information to the court, alleging plaintiff had committed various crimes.

46. The individual defendants lacked probable cause to believe the above-stated malicious prosecution could succeed.

47. The individual defendants initiated the above-stated malicious prosecution to cover up their illegal and unconstitutional conduct.

48. The above-stated malicious prosecution caused a sufficient post-arraignment liberty restraint on plaintiff.

SIXTH CLAIM

(MONELL CLAIM)

49. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

50. Defendant City of New York, through a policy, practice, and custom, directly caused the constitutional violations suffered by plaintiff.

51. Defendant City of New York through the NYPD and its officers, committed the following unconstitutional practices, customs, and policies against plaintiff: (1) unlawfully stopping and searching innocent persons; (2) wrongfully arresting innocent persons in order to meet productivity goals; (3) wrongfully arresting individuals based on pretexts and profiling; (4) using unreasonable force on individuals; and (5) fabricating evidence against innocent persons.

52. Upon information and belief, defendant City of New York, at all relevant times, was aware that the defendants were unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

53. Nevertheless, defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, defendant City of New York failed to adequately investigate prior complaints filed against the individual defendants.

54. Further, defendant City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice, and/or policy) would stop, arrest, and prosecute innocent individuals, based on pretexts and false evidence.

55. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct involving the individual defendants, placing the defendant City of New York on notice of the

individual defendants' propensity to violate the rights of individuals.

56. In addition to frequently violating the civil rights of countless residents of New York City, numerous members of the NYPD commit crimes. Officers have been arrested and convicted of such crimes as planting evidence on suspects, falsifying police reports, perjury, corruption, theft, selling narcotics, smuggling firearms, robbery, fixing tickets, driving under the influence of alcohol, vehicular homicide, assault, and domestic violence. In fact, former NYPD Commissioner Bernard Kerik was convicted of corruption-related crimes in federal and state courts and served time in federal prison. In 2011, Brooklyn South Narcotics Officer Jerry Bowens was convicted of murder and attempted murder in Supreme Court, Kings County, while under indictment for corruption and is presently serving a life sentence. In 2011, Police Officer William Eiseman and his subordinate Police Officer Michael Carsey were convicted of felonies in Supreme Court, New York County, for lying under oath, filing false information to obtain search warrants and performing illegal searches of vehicles and apartments. In 2012, New York City Police Officer Michael Pena was convicted in Supreme Court, New York County, of raping and sexually

assaulting a woman at gunpoint and is presently serving a sentence of 75 years to life.

57. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the NYPD were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

58. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the NYPD were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

59. The City's failure to act resulted in the violation of plaintiff's constitutional rights as described herein.

WHEREFORE, plaintiff demands, damages in an amount which exceeds the jurisdiction of all lower Courts otherwise having jurisdiction, a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;

- c. Costs, interest and attorney's fees, pursuant to 42 U.S.C. § 1988; and
- d. Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

DATED: New York, New York
August 5, 2019

ADAMS & COMMISSIONG LLP,
Attorney for Plaintiffs
65 Broadway Suite 1603
New York, New York 10006
212-430-6590
martin@amcmlaw.com

By:



MARTIN E. ADAMS, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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SHAKIM ALLEN,

VERIFICATION

Plaintiff,

Index No: _____

-against-

Date Filed: _____

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NYPD SGT. STEPHEN HILLMAN; NYSDOCCS P.O.
HERNANDEZ; JOHN/JANE DOES # 1-10; the
individual defendant(s) sued individually and
in their official capacities,

Defendants.

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STATE OF NEW YORK

ss.:

COUNTY OF NEW YORK

Martin E. Adams, Esq, an attorney-at-law, duly admitted to practice law in the State of New York, hereby affirms pursuant to the C.P.L.R. and subscribing as true under the penalties of perjury as follows:

That the Affirmant is a member of the law firm Adams & Commissiong LLP, the attorneys of record for the plaintiff in the above entitled action.

That the Affirmant has read the foregoing complaint and knows the contents thereof; that the same is true to his knowledge, except as to the matters stated to be alleged upon information and belief, and that as to those matters he believes them to be true.

That the reason why this verification is made by Affirmant instead of the plaintiff is because the plaintiff does not reside within the County in which the firm of Adams & Commissiong LLP maintain their office.

The grounds of Affirmant's belief as to all matters in the complaint not stated to be upon his knowledge are based upon conversations with plaintiff, and a review of records related to this action.

DATED: New York, New York
August 5, 2019



MARTIN E. ADAMS, ESQ